

Ex 2824/2023

Counsel for JDR No.1(b) and (c) filed application Under Section 151 of CPC seeking recall of order dtd: 18.04.2024, the prayer which was already rejected by this Court.

Therefore, the application is rejected.

The Counsel for JDR No.1(b) and (c) filed D.D. No. 382254 dtd: 20.06.2024 towards the decreetal amount i.e., cost.

Office is directed to credit the same to CCD.

Counsel for JDR No.1(b) and (c) filed memo seeking adjournment on the ground that, the Writ Petition filed by the JDR No.1(b) and (c) against order dtd: 18.04.2024 is pending before the Hon'ble High Court of Karnataka in W.P. NO. 16431/2024. However, the Counsel acknowledged that, there is no any stay order.

The JDR has already deposited the entire decreetal amount, therefore, I am of the view of that, it is just and proper to close the petition as fully satisfied.

However, considering the Writ Petition pending before Hon'ble High Court of Karnataka for consideration, office is directed not to release the amount for 15 days from the date of this order.

Accordingly, petition is disposed as fully satisfied.

XXVII ACC & SJ, Bengaluru.